

Before the  
FEDERAL MARITIME COMMISSION  
Washington, D.C. 20573  
Docket No. 25-09  
QVC, INC. AND CORNERSTONE BRANDS, INC.  
v.  
OCEAN NETWORK EXPRESS PTE. LTD.

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**JOINT STATUS REPORT AND FIFTH MOTION TO EXTEND DEADLINES**

COME NOW the parties, Complainants, QVC, INC. AND CORNERSTONE BRANDS, INC. (“Complainants” or “QVC”), and Respondent Ocean Network Express Pte. Ltd. (“Respondent” or “ONE”), by their respective undersigned counsel, and, pursuant to 46 C.F.R. Sections 502.69 and 502.102, hereby submit this Joint Report and Fourth Motion to Extend Deadlines (“Motion”) and respectfully request an extension of the deadlines set forth in the Presiding Officer’s September 1, 2026 Scheduling Order to accommodate the current progress of the Parties’ discovery, which is progressing as quickly as possible.

**I. The Current Schedule**

On September 1, 2026, the Presiding Officer entered the following Scheduling Order:

| EVENT                                                                    | ORDERED DEADLINE |
|--------------------------------------------------------------------------|------------------|
| Complete depositions of fact witnesses                                   | 10/09/2026       |
| Last day to serve interrogatories, requests for admission, and RFPs      | 10/09/2026       |
| Disclosure of initial expert reports, if any                             | 11/23/2026       |
| Disclosure of rebuttal expert reports, if any                            | 12/07/2026       |
| Last day to respond to interrogatories, requests for admission, and RFPs | 12/14/2026       |
| Close of fact discovery                                                  | 12/14/2026       |

|                                                                                                                |            |
|----------------------------------------------------------------------------------------------------------------|------------|
| Complete expert depositions and all discovery                                                                  | 12/23/2026 |
| Complainants' initial brief, proposed findings of fact, and appendix                                           | 01/29/2027 |
| Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix | 03/01/2027 |
| Complainants' reply and responses to proposed findings of fact                                                 | 03/16/2027 |

The Parties submit the below as good cause for an additional extension of each of the respective dates at issue. The Parties have worked together to make significant steps in the discovery process in the present matter.

## **II. Progress to Date**

Complainants have substantially completed their production of documents. Complainants made an initial production of 13,367 documents to Respondent on March 6, 2026; a second production of 4,135 documents on March 16, 2026; a third production of 1,124 documents on June 18, 2026; and a fourth production of 397 documents on September 29, 2026. Complainants are finalizing a privilege log to produce to Respondent in October.

Respondent has also substantially completed its production of documents. Respondent made an initial production of 1,613 documents to Complainant on March 29, 2026, a second production of 646 documents on May 11, 2026, a third production of 3,658 documents on June 5, 2026, a fourth production of 2,138 documents on June 16, 2026, and a fifth production of 10,500 on June 29, 2026. Respondent continues processing approximately 4,582 responsive documents (not including documents' families<sup>1</sup>) requiring redaction prior to their production to Complaints. On September 28, 2026, Respondent produced an additional set of 1,832 responsive documents that required redactions. The process continues to be lengthy due to the complexity and significant

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<sup>1</sup> The total count of documents inclusive of family documents is 32,350. Please note that these additional 27,768 family documents have little to no relation to QVC, instead they just happen to be connected to a document with information about QVC that is designated AEO. Respondent has learned from its vendor that many of the documents are large Excel files requiring manual redactions and reingestion into the database, which makes the process longer than expected.

amount of information that is unrelated to QVC requiring redaction. As previously reported, this sensitive business information involves spreadsheets of thousands of pages and multiple levels of review for accuracy and consistency. Respondent has learned from its vendor that the redaction process of the remaining documents is expected to take approximately an additional two to three weeks. Respondent is also in the process of preparing a privilege log that will be provided to Complainant following the completion of the productions. Additionally, on September 29, 2026, Respondent received an additional production of approximately 397 documents (624 pages) from Complainant.

In compliance with the Presiding Officer's Scheduling Order, the Parties have continued to cooperate with one another and use their best efforts to complete discovery in a timely fashion. The Parties will need additional time to conclude their respective reviews of supplemental document productions and to prepare for potentially numerous depositions. As previously noted, the Parties have collectively identified over twenty potential fact witnesses that may be deposed. The Parties are also mindful that the recently issued Initial Decision in *20230930-DK Butterfly-1, Inc. F/K/A Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Dkt. No. 23-02, 2026 WL 1285696 (ALJ April 24, 2026) addresses issues similar to some of those raised in this proceeding. The Parties will continue to work to narrow the issues before them, including through the use of experts. The engaged experts' involvement will become more prominent after conclusion of the review of the Parties' productions and through the depositions of fact witnesses.

It is also worth noting that counsel for both Parties have been taking depositions daily since the beginning of August in three other proceedings before the Federal Maritime Commission and that additional depositions are scheduled to happen over the next four weeks.

Even taking into account the Parties' ongoing efforts to collaborate in narrowing the issues, this request is based on the pace of the Parties' ongoing productions and reviews in anticipation of fact witness depositions even when using all resources and all good faith efforts. To address it in any workable manner, using all reasonable efforts, the Parties respectfully submit that the request made herein be granted.

**I. Good Cause Exists to Extend the Current Deadlines**

The facts concerning the current status of discovery can be summarized as follows: the Parties worked diligently and cooperatively to meet the Scheduling Order's June 30, 2026 deadline for substantial completion of document (including ESI) production, have made rolling productions of documents to one another, and have met and conferred. The Parties have subsequently conducted review of the documents produced while also identifying and reviewing additional potentially responsive documents for subsequent production, which have and will result in the production of additional thousands of documents. The process is still ongoing. The Parties have continuously worked with their respective e-discovery partners to streamline the process as much as possible and continue to do so. The Parties submit that the substantial volume of documents, the need for thorough review, and the Parties' shared goal of ensuring that depositions of fact witnesses be conducted efficiently and based on a thorough review of the full factual record comprises a good cause reason for an extension of time to ensure that the Parties can complete their discovery obligations effectively. Additional time to conclude production and review of documents and to conduct depositions of fact witnesses will in turn allow the Parties to adequately present their respective claims and defenses in the subsequent stages of this case.

The Parties have and continue to work to limit the need for any discovery-related disputes to be brought before the Presiding Officer. To facilitate this goal while providing the Presiding

Officer with timely updates, the Parties propose providing an additional Joint Status Report to the Presiding Officer by October 30, 2026.

The Parties are aware of the prior Order of this tribunal and the Chief Administrative Law Judge Erin M. Wirth's Order in *Way Interglobal Network LLC v. Shenzheng SCM Limited*, FMC Dkt. No. 22-28, Dk. No. 18, denying a request for 120 additional days and instead granting a 45-day extension. In making this Motion, the Parties have limited their request to the most reasonable amount of time in which they believe they can feasibly conduct discovery in this large, complex litigation, with the understanding that they will also continue to work to stipulate to facts, limit depositions, and expeditiously resolve discovery disputes and produce documents promptly to the extent possible.

Although the Parties will continue to endeavor to adhere to the ordered schedule, the sheer volume of documents may make for an impossible situation as is the case now. Other reasons may include issues arising from the collection and production of documents located abroad or in the custody of non-parties, the need for significant Party depositions, or the need for testimony from non-parties or individuals located abroad (including employees of Respondent). The Parties will work to limit such extension requests, including by working to facilitate consent for email service of subpoenas and provision of contact information, where available. However, in the interest of full transparency, the Parties wish to note such possible issues to the Presiding Officer now. Indeed, as is a matter of public record, in an action before the Commission by the complainant in that case against another ocean carrier in *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Docket No. 23-02, where the complainant has raised similar legal claims as in the present action, the parties there took over 30 total depositions.

Rule 102(a) of the Federal Maritime Commission’s Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: “Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause.”

As shown above, a higher volume of documents by many magnitudes is involved in this matter than the 20,000 pages cited by the parties in *One Banana North America Corp. v HapagLloyd AG et al.*, FMC Dkt. No. 22-03, in which the Presiding Officer granted an approximate 75- day extension from the originally ordered production and deposition deadlines. Instead, this case is more similar to that in *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Docket No. 23-02, where, as mentioned, over 30 depositions were taken. Given the significant number of custodians in the present case, it is possible that the number of depositions conducted in this case will approximate those which were taken in the *BBBY v. OOCL* proceeding. If so, both Parties are intent on avoiding any wasteful actions and will work to streamline all such developments to their fullest ability.

## **II. Conclusion**

Given that the Parties are still working diligently to review and produce documents in anticipation of potentially extensive fact witness depositions, the Parties respectfully submit that an extension of the deadlines in the Presiding Officer’s September 1, 2026 Scheduling Order is necessary to allow the Parties a fair opportunity to review and conclude their respective production of documents, to review such productions from the opposing party or third parties, to depose each other’s respective fact and expert witnesses, and assess any additional discovery. The Parties will endeavor to avoid seeking additional extensions of time and, to the extent motions are needed, will seek to raise them as soon as the need appears and, where possible, file them jointly.

The Parties therefore jointly request the following amended Scheduling Order to complete depositions of fact witnesses.

| <b>EVENT</b>                                                                                                   | <b>ORDERED DEADLINE</b> |
|----------------------------------------------------------------------------------------------------------------|-------------------------|
| Joint Status Report 5 regarding discovery                                                                      | 10/30/2026              |
| Complete depositions of fact witnesses                                                                         | 11/24/2026              |
| Last day to serve interrogatories, requests for admission, and RFPs                                            | 11/24/2026              |
| Disclosure of initial expert reports, if any                                                                   | 01/08/2027              |
| Disclosure of rebuttal expert reports, if any                                                                  | 01/22/2027              |
| Last day to respond to interrogatories, requests for admission, and RFPs                                       | 01/29/2027              |
| Close of fact discovery                                                                                        | 01/29/2027              |
| Complete expert depositions and all discovery                                                                  | 02/10/2027              |
| Complainants' initial brief, proposed findings of fact, and appendix                                           | 03/15/2027              |
| Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix | 04/14/2027              |
| Complainants' reply and responses to proposed findings of fact                                                 | 04/28/2027              |

Pursuant to 46 C.F.R. Section 502.71(a), counsel for Complainants and counsel for Respondent have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The Parties each agree to the relief requested in this Motion.

WHEREFORE, the Parties jointly pray that their Joint Motion to Extend Deadlines be granted.

Dated: September 30, 2026

Respectfully submitted,

[EXECUTED ON THE FOLLOWING PAGE]

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